



Policy Brief for the Governing Body of the City of Cheyenne

Date: 1-8-2026

Subject: City of Cheyenne – Administrative Inspection Warrants (Chapter 1.28)

Purpose:

Establishes a straightforward, constitutional process for city officials to obtain warrants for inspections or investigations when consent is denied, or cannot be obtained, ensuring compliance with municipal and state law while maintaining constitutional rights of property owners.

Key Provisions:

1. When is a Warrant Needed?

CFR would request an administrative inspection warrant for the following actions when access is denied or cannot be obtained:

- **Fire Code Inspections:** (For Commercial Properties)
 - Routine or follow-up inspections when consent is refused to ensure compliance with the International Fire Code adopted by the City of Cheyenne.
- **Fire Investigations:** (Post-incident Residential and Commercial Properties)
 - Determining cause and origin after a fire when property access when legal access to the property cannot be obtained through consent.
 - If, during the course of an investigation, evidence of criminal activity is discovered, all investigations will halt, and a criminal search warrant will be obtained in coordination with law enforcement.

2. Authority to Issue

- A municipal judge may issue an administrative inspection warrant upon proper application by an authorized city official or employee.
- Warrants must comply with the U.S. and Wyoming Constitutions.
(§1.28.010)

3. Warrant Requirements:

- Written order describing:



- Property or premises to be entered.
- Purpose and scope of inspection.
- Legal authority for issuance with documented length of time for access.
(§1.28.010(B))

4. Grounds for Issuance:

- Supported by affidavit under oath, including:
 - Applicant's authority.
 - Applicable ordinance or statute.
 - Description of premises and purpose.
- Must show:
 - Consent was sought and refused, or
 - Consent would frustrate the inspection purpose, or consent could not be obtained.
- Cause exists if:
 - Fire investigation incomplete and further investigation needed to determine the causation of the fire, OR
 - Routine inspection standards apply, OR
 - Probable life safety hazard exists, OR
 - Inspection needed to verify compliance.
(§1.28.020)

5. Procedure:

- Application submitted by the Fire Chief, or authorized designee, submits a sworn statement.
- Judge reviews evidence and may examine the applicant under oath.
- Warrant specifies authorized personnel, premises, and purpose.
- Executed during **reasonable hours**, unless the judge authorizes otherwise.
(§1.28.030)



6. Execution:

- Show credentials and warrant before entry (unless notice frustrates purpose).
- Law enforcement may assist for safety.
- Must be executed within 10 days (extendable by 5 days).
(§1.28.040)

Fire Department Authority:

- Fire Chief, or designee, may request warrants to enforce the adopted International Fire Code (IFC 104.4: Right of Entry & 104.4.1: Warrant) and Wyoming Statutes (§§359109, 111, 112, 116, 156).
(§2.32.050)

Key Case Law

- **Michigan v. Tyler (1978) & Michigan v. Clifford (1984):** (Fire Investigations)
 - Warrantless searches after an emergency ends violate the 4th Amendment.
 - U.S. Supreme Court recommends utilizing the Administrative Warrant Process
 - Evidence obtained without a proper warrant is inadmissible.
- **Camara v. Municipal Court:** (Commercial Occupancy Fire Inspections)
 - Administrative inspection searches require a warrant unless consent is given.

Why It Matters:

- Protects **constitutional rights**.
- Enables enforcement of fire code in commercial occupancies.
- Accurately determine the cause and origin of fires to help prevent them from occurring in the future.
- Provides a transparent, legal process for inspections when consent is denied or cannot be obtained.
- Ensures compliance with state statutes, the adopted international fire code, and municipal code.